

Terms of Service

INTRODUCTION

1. Welcome to our website ("Site"). Please read these Terms of Use carefully before accessing, using and browsing the Site.

BY ACCESSING, USING AND BROWSING THE SITE, YOU AGREE THAT YOU HAVE READ THESE TERMS OF USE AND THAT YOU ACCEPT AND AGREE TO BE BOUND BY THEM INCLUDING THOSE ADDITIONAL TERMS AND CONDITIONS AND POLICIES REFERENCED HEREIN AND/OR LINKED HERETO. IF YOU DO NOT AGREE TO THESE TERMS, PLEASE DO NOT USE OUR SERVICES OR ACCESS THE SITE.

B. DEFINITION

In these Terms of Use the following expressions shall have the following meanings:

"Force Majeure" shall mean means any unforeseeable event or cause beyond the reasonable control of Nirvana, which prevents or delays the performance or observance of Nirvana's obligations under the Site, including but not limited to fire, explosion, casualty, accident, storm, flood, drought, weather conditions, earthquake, act of God or other natural disaster, insurrection, strike, hostilities, riot, civil commotion, labour disputes, shortage of labour, shortage or unavailability of Products or raw materials, mechanical breakdown, delay in transit, failure or problems with public utility supplies including electrical, telecommunication or internet failure or other causes whatsoever (whether similar to the foregoing or not), enemy action, revolution, war, blockage, embargo, lockout, government order, epidemic, pandemic, viral or any law, order, proclamation, regulation, demand or requirement of any government or of any of its government agencies.

"You" or "your" shall mean you or any person or entity who views, uses, accesses, browses the Site with us.

"Nirvana" or "we" or "us" shall mean Nirvana Asia Ltd. (Company No. 245788) and any of its group of companies.

"Product" or "Products" shall mean any and all the products offered for on line sale by Nirvana through the Site.

"Service" or "Services" shall mean any and all the services offered for on line sale by Nirvana through the Site.

h. "Terms of Use" shall mean these terms and conditions contained herein including any modifications and amendments or additions thereto from time to time.

C. ADDITIONAL TERMS & CONDITIONS AND VARIATION

1. Additional terms and conditions may apply to the Products and Services offered on or through the Site and to specific portions or features of the Site, including contests, promotions or other similar features ("Other Terms & Conditions"), all of which terms are made a part of these Terms of Use by this reference. You agree to abide by such Other Terms & Conditions, including where applicable representing that you are of sufficient legal age to use or participate in such service or feature. If there is a conflict between these Terms of Use and any of the Other Terms & Conditions, the latter terms shall control with respect to your use of that portion of the Site or in relation to that specific Products or Services.

Nirvana reserves the right to amend, modify, add or remove any portions of these Terms of Use from time to time or at any time at its sole discretion. Nirvana shall have no responsibility to notify you of any changes to the Terms of Use prior to the coming into effect of such changes or otherwise. It is your responsibility to check these Terms of Use periodically for changes. Your continued use of the Site following the posting of changes will mean that you accept and agree to the changes.

D. FORCE MAJEURE

1. Nirvana shall not be liable for any delay or failure in the performance by Nirvana of its obligations under the Site caused by or resulting from Force Majeure.

E. PRIVACY

Nirvana's Privacy Policy applies to use of the Site, and its terms are made a part of these Terms of Use by this reference. Please refer to Nirvana's Privacy Policy for details..

F. LINKS

The Site may contain links to other sites and pages which are not maintained or controlled by Nirvana and for which we are responsible ("Linked Sites"). When you activate any of these Linked Sites you leave the Site and access to such Linked Sites is at your own risk for which Nirvana disclaims all responsibility and liability. You will need to make your own independent judgment regarding your interaction with these Linked Sites.

G. LIMITATION OF LIABILITY

To the extent permitted by law, all warranties, descriptions, representations or advice given as to the fitness or suitability for any purpose, tolerance to any conditions, similarity to sample, merchantability or otherwise of the Products and/or Services supplied, are expressly excluded.

2. No agent or representative of Nirvana is authorized to make any warranties, representations or statements regarding the Products and/or Services and Nirvana shall not in any way be bound by any such unauthorized warranties, representations or statements.

I. CONTENT AND INTELLECTUAL PROPERTY

All text, graphics, user interfaces, visual interfaces, photographs, trademarks, logos, sounds, music,

artwork and computer code (collectively, "Content"), including but not limited to the design, structure, selection, coordination, expression, "look and feel" and arrangement of such Content, contained on the Site is owned, controlled or licensed by or to Nirvana, and is subject to the intellectual property rights and laws.

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You may not use the Site or any Content for any purpose that is unlawful or prohibited by these Terms of Use, or to solicit the performance of any illegal activity or other activity which infringes the rights of Nirvana or others.

All right, title and interest in all intellectual property (including but not limited to the trade marks, logos and service marks of Nirvana) in all forms and related materials displayed on the Site shall at all times remain the property of Nirvana and no person shall be allowed to use the same without the written permission of Nirvana. No right or license is given to any party accessing the Site to use or reproduce in any manner any such marks or logos.

J. DISCLAIMER

1. By accessing and using the Site, as well as submitting any requests to Nirvana for online processing, you acknowledge and accept that such access and submission is at your own risk. Nirvana shall not be liable for any direct, indirect, incidental, consequential or punitive damage or for damages for lost profits or for loss of revenue arising out of any use of, access to, or inability to use the Site/submit any online requests to Nirvana. Without limiting the foregoing:

THE SITE, DOCUMENTS AND ALL INFORMATION AND MATERIALS CONTAINED THEREIN ARE PROVIDED "AS IS" WITHOUT ANY WARRANTY OF ANY KIND EITHER EXPRESS OR IMPLIED INCLUDING BUT NOT LIMITED TO ANY IMPLIED WARRANTIES OR IMPLIED TERMS AS TO TITLE, QUALITY, MERCHANTABILITY, FITNESS FOR PURPOSE, PRIVACY OR NON-INFRINGEMENT. NIRVANA SHALL NOT BE LIABLE OR RESPONSIBLE FOR ANY ERRORS OR OMISSIONS IN THE CONTENTS THEREOF. NIRVANA ASSUMES NO RESPONSIBILITY AND SHALL NOT BE LIABLE (TO THE EXTENT PERMITTED BY LAW) FOR ANY DAMAGE OR INJURY ARISING OUT OF ANY USE OF OR ACCESS TO SITE/CONTENTS, OR ANY FAILURE OF PERFORMANCE, ERROR, OMISSION INTERRUPTION, DELETION, DEFECT, DELAY IN OPERATION OR TRANSMISSION, COMPUTER VIRUS, COMMUNICATION LINE FAILURE, INTERCEPTION OF ONLINE COMMUNICATION, SOFTWARE OR HARDWARE PROBLEMS (INCLUDING WITHOUT LIMITATION LOSS OF DATA OR COMPATIBILITY PROBLEMS), THEFT, DESTRUCTION OR ALTERATION OF THE SITE, WHETHER FOR BREACH OF CONTRACT, TORTIOUS BEHAVIOUR, NEGLIGENCE OR, UNDER ANY OTHER CAUSE OF ACTION RESULTING DIRECTLY OR INDIRECTLY FROM ANY ACCESS OR USE OF THE SITE/CONTENTS, OR ANY UPLOADING, DOWNLOADING OR PUBLICATION OF DATA, TEXT, IMAGES OR OTHER MATERIAL OR INFORMATION TO OR FROM THE SITE.

K. INDEMNITY

1. You agree to indemnify and hold harmless Nirvana, and its officers, directors, shareholders, employees, agents, subsidiaries and affiliates from and against any and all claims, actions, demands, proceedings, loss, liability, penalties, fines, costs and/or expenses (including solicitors' fees) incurred, suffered or made against Nirvana due to or arising out of or in connection with: (a) your use or misuse of the Site; (b) any transaction made on the Site by your Login or under your Account; (c) your violation or breach of any term of these Terms of Service or Other Terms of Conditions or any policy or guidelines referred herein or (d) any Content uploaded by you.

L. VIOLATION/BREACH

You agree that Nirvana may, in its sole discretion and without prior notice, terminate your access to the Site and/or block your future access to the Site and/or Account if we determine that you have violated these Terms of Use or other terms, agreements, policies or guidelines which may be associated with your use of the Site. You also agree that any violation by you of these Terms of Use will constitute an unlawful and unfair business practice, and will cause irreparable harm to Nirvana, for which monetary damages would be inadequate, and you consent to Nirvana obtaining any injunctive or equitable relief that Nirvana deems necessary or appropriate in such circumstances without prejudice to any other remedies Nirvana may have at law or in equity.

M. MISCELLANEOUS

1. The headings and sub-headings in these Terms of Use are inserted merely for convenience of reference and shall be ignored in the interpretation and construction of any of the provisions contained herein.

2. No failure on the part of Nirvana to exercise, and no delay on Nirvana's part in exercising, any right or remedy under these Terms of Use will operate as a waiver thereof, nor will any single or partial exercise of any right or remedy preclude Nirvana for further exercise thereof or the exercise of any other right or remedy.

3. If any provision or any part of any provision of these Terms of Use which are illegal, void prohibited or unenforceable shall be ineffective to the extent of such illegality, voidness, prohibition or unenforceability without invalidating the remaining provisions hereof and any such illegality, voidness, prohibition or unenforceability shall not invalidate or render illegal, void or unenforceable any other provision contained herein.

4. These Terms of Use shall be governed by and construed in accordance with the laws of Malaysia and you hereby agree to submit to the jurisdiction of the Court of Malaysia.

The Terms of Use in the English language shall prevail over the Chinese language should any conflict arise in the interpretation of these Terms of Use.